

25VECV06299 25VECV06299

County: los-angeles
Division: Civil Law and Motion
Department: I
Hearing date: 2026-08-21
Motion: MOTION TO SET ASIDE OFFER OF COMPROMISE
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Case Number: 25VECV06299 Hearing Date: August 21, 2026 Dept: I

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

CHAD NORRIS,
an individual,

Plaintiff,

vs.

GENERAL MOTORS LLC, et al.,

Defendants.

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CASE

NO: 25VECV06299

[TENTATIVE]

ORDER RE: MOTION TO SET ASIDE OFFER OF COMPROMISE

Dept.

I

HEARING

DATE: August 21, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: November 3, 2025

TRIAL

DATE: None set.

I.

BACKGROUND

This is a lemon law action arising out of Plaintiff Chad Norris' ("Plaintiff") purchase of a Certified Pre-Owned 2021 Cadillac Escalade, VIN: 1GYS4DKL7MR249337 (the "Subject Vehicle") manufactured by Defendant General Motors LLC ("GM") and sold by Defendants Cadillac Pasadena LLC d/b/a Cadillac Pasadena and Cadillac of Calabasas Inc. d/b/a Cadillac of Calabasas.

On November 3, 2025, Plaintiff filed a Complaint against GM, Cadillac Pasadena, Cadillac of Calabasas, and DOES 1 through 25 (collectively, "Defendants"), asserting causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; (3) Violation of the Song-Beverly Act Section 1793.2(b); (4) Negligent Repair; (5) Violation of the Consumer Legal Remedies Act (California Civil Code § 1770 et seq.); (6) Fraudulent Inducement – Concealment; (7) Intentional Misrepresentation; and (8) Negligent Misrepresentation.

On

January 7, 2026, GM filed its Answer to the Complaint. On January 27, 2026, Cadillac Pasadena filed its Answer to the Complaint.

On March 11, 2026, GM and Cadillac Pasadena filed separate Motions for Judgment on the Pleadings. The matters were fully briefed and came on for hearing on April 14, 2026; the motions were granted in part as to the fifth, sixth, and seventh causes of action with leave to amend.

On May 13, 2026, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants.

On June 11, 2026, GM filed a Statutory Offer to Compromise (CCP § 998), which was signed by GM and Plaintiff.

On June 25, 2026, GM filed the instant Motion to Set Aside Offer to Compromise. On August 11, 2026, Plaintiff filed an Opposition. On August 14, 2026, GM filed a Reply.

II.

LEGAL

STANDARDS

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court may “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) In addition, a court must vacate a default or dismissal when a motion for relief under Section 473, subdivision (b) is filed timely and accompanied by an attorney’s sworn affidavit attesting to the attorney’s mistake, inadvertence, surprise or neglect “unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise or neglect.” (Id.)

The

party or the legal representative must seek such relief “within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b); see *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 [“because more than six months had elapsed from the entry of default, and hence relief under section 473 was unavailable”]; *People v. The North River Ins. Co.* (2011) 200 Ca.App.4th 712, 721 [motion for relief under section 473 must be brought “within a reasonable time, in no case exceeding six months”]). “The six-month limit is mandatory; a court has no authority to grant relief under section 473, subdivision (b), unless an application is made within the six-month period.” (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340, citations omitted.)

“A mistake of fact is when a person understands the facts to be other than they are; a mistake of law is when a person knows the facts as they really are but has a mistaken belief as to the legal consequences of those facts...[i]nadvertence is defined as lack of heedfulness or attentiveness, inattention, fault from negligence...[and] ‘excusable neglect’ referred to in the section is that neglect which might have been the act of a reasonably prudent person under the same circumstances.” (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921 [emphasis added].) “The term ‘surprise’, as used in section 473, refers to ‘some condition or situation in which a party...is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against.’” (*State Farm Fire & Casualty Co. v. Pietak* (2001) 90 Cal.App.4th 600, 611 [emphasis added].)

“Relevant

factors in assessing counsel error include: “(1) the nature of the mistake or neglect; and (2) whether counsel was otherwise diligent in investigating and pursuing the claim.” (Huh v. Wang (2007) 158 Cal.App.4th 1406, 1423.)

“Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable.

To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.” (Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc. (2013) 217 Cal.App.4th 1096, 1112.)

III.

DISCUSSION

GM moves

for an order setting aside the Code of Civil Procedure Section 998 Offer of Compromise entered on May 26, 2026 (“Section 998 Offer”). The motion is made on the grounds that the Section 998 Offer is unenforceable because Plaintiff failed to add co-buyer Dara Lynn Norris, who is a necessary and indispensable party, to this instant action. Specifically, GM argues that it entered into the Section 998 Offer on the mistaken belief that Plaintiff had sole possession of the Subject Vehicle. (Kay Decl., ¶5, Ex. 2.)

“[T]he discretionary

relief provision of section 473 only permits relief from attorney error ‘fairly imputable to the client, i.e., mistakes anyone could have made.’ ” (Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258 (Zamora).)

Here,

GM contends that it discovered Plaintiff’s wife, Dara Lynn Norris (hereinafter, “Mrs. Norris”), was a co-buyer of the Subject Vehicle on June 3, 2026. (Kay Decl., ¶6, Ex. 3.) In opposition, Plaintiff contends that GM cannot claim mistaken belief because GM was served with Plaintiff’s initial disclosures on March 10, 2026, which was approximately six weeks prior to execution of the Section 998 Offer. (Ahoulim Decl., ¶2.) GM admits that the Retail Installment Sales Contract (“RISC”) received with Plaintiff’s initial disclosures revealed Mrs. Norris’ co-buyer and/or co-owner status. (Kay Decl., ¶5 [“(See purchase contract for the Subject Vehicle, received as part of Plaintiff’s initial disclosures, attached hereto as Exhibit 2.)”].) However, GM’s counsel’s failure to carefully review the documents submitted during initial disclosures, which contained

production of over 100 pages of documents, constitutes a mistake that could be made by a reasonable person under similar circumstances. (See Zamora, supra, 28 Cal.4th 259 ["While counsel's failure to review the document before sending it out was imprudent, we cannot say that his imprudence rendered the mistake inexcusable under the circumstances."].) This is further evidenced by the fact that GM never raised the issue during the attack on the pleadings via motion for judgment on the pleadings nor when drafting the Section 998 Offer, which expressly requires Plaintiff alone to surrender the Subject Vehicle to GM with clear title. (GM Mot. for Judgment on the Pleadings, 3/11/26; Kay Decl., ¶5, Ex. 2 at p. 1, ¶1.)

Accordingly,
GM has demonstrated that the Section 998 Offer was entered into upon the mistaken belief that Plaintiff was the sole owner of the Subject Vehicle.

A. CONCLUSION

Defendant
General Motors LLC's Motion to Set Aside Offer to Compromise is GRANTED.

Defendant
General Motors LLC to give notice.

Dated: August
21, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
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CHAD NORRIS,
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CASE

NO: 25VECV06299

[TENTATIVE]

ORDER RE: MOTION TO DISMISS ACTION

Dept.

I

HEARING

DATE: August 21, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: November 3, 2025

TRIAL

DATE: None set.

I.

BACKGROUND

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On May 13, 2026, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants.

On June 25, 2026, GM filed the instant Motion to Dismiss Action. On August 11, 2026, Plaintiff filed an Opposition. On August 14, 2026, GM filed a Reply.

II.

LEGAL

STANDARDS

"A

person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party." (Code Civ. Proc., § 389, subd. (a).)

"If

a person as described in paragraph (1) or (2) of subdivision (a) cannot be made a party, the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable." (Code Civ. Proc., § 389, subd. (b).)

“The controlling test for determining whether a person is an indispensable party is, ‘Where the plaintiff seeks some type of affirmative relief which, if granted, would injure or affect the interest of a third person not joined, that third person is an indispensable party.’” (Save Our Bay, Inc. v. San Diego Unified Port Dist. (1996) 42 Cal.App.4th 686, 692.) “A person is an indispensable party if his or her rights must necessarily be affected by the judgment.” (Id.)

III.

DISCUSSION

GM

moves for an order dismissing this present lawsuit on the grounds that Plaintiff failed to include a necessary and indispensable party to the case. Specifically, GM asserts that Plaintiff failed to include, Dara Lynn Norris, who is co-buyer and co-owner of the Subject Vehicle. (Kay Decl., ¶¶4-5, Exs. A-B.) In opposition, Plaintiff does not dispute that his wife, Dara Lynn Norris (hereinafter, “Mrs. Norris”) is the co-buyer of the Subject Vehicle. (Opp. at 4:4-6.)

Under

Civil Code Section 1794, “[a]ny buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief.” (Civ. Code, § 1794, subd. (a).) “ ‘Buyer’ or ‘retail buyer’ means any individual who buys consumer goods from a person engaged in the business of manufacturing, distributing, or selling consumer goods at retail. As used in this subdivision, ‘person’ means any individual, partnership, corporation, limited liability company, association, or other legal entity that engages in any of these businesses.” (Civ. Code, § 1791, subd. (b).)

“The Song-Beverly Act, ‘[p]opularly known as the automobile ‘lemon law’ [citation] ... is strongly pro-consumer ... [and] ... ‘should be given a construction calculated to bring its benefits into action.’” (DeNike v. Mathew Enterprise, Inc. (2022) 76 Cal.App.5th 371, 384; see also Niedermeier v. FCA US LLC (2024) 15 Cal.5th 792, 804 “[T]he Act is ‘manifestly a remedial measure, intended for the protection of the consumer; it should be given a construction calculated to bring its benefits into action.’ ”].)

Here,

Plaintiff's request for rescission of the Retail Installment Sales Contract ("RISC"), restitution, and other equitable relief in the FAC as a practical matter would impair or impede Mrs. Norris' ability to seek these same remedies since she is not a party to this action. Also, the accepted Section 998 Offer to Compromise requires Plaintiff to surrender the Subject Vehicle to GM with clear title. (Ahoulim Decl., ¶3, Ex. 1 at p. 1, ¶1.) As such, Mrs. Norris is a necessary party to this instant lawsuit.

To the extent that GM argues Mrs.

Norris is an indispensable party, thus dismissal of this action warranted, the Court disagrees. Plaintiff concedes that joinder is entirely feasible since Mrs. Norris "is a California resident fully subject to this Court's jurisdiction." (Opp. at 4:12-14.) Nevertheless, Plaintiff fails to provide this Court with a satisfactory explanation as to why he refuses to stipulate to adding Mrs. Norris as a plaintiff in this action. In fact, Plaintiff merely asserts that Mrs. Norris is "ready, willing, and able to execute a comprehensive release of all claims against GM co-extensive with Plaintiff's release," therefore, GM would not suffer any prejudice by her absence in this case. (Opp. at 4:15-17, 11:24-12:1; Ahoulim Decl., ¶9.) However, there is no declaration or other written statement submitted by Mrs. Norris under the penalty of perjury indicating that she will sign a "joint release" with Plaintiff as it relates to the accepted Section 998 Offer to Compromise. Essentially, there is no affirmative showing that Mrs. Norris would be prevented from initiating a lawsuit to which GM would have to defend because she is not a party to this instant case and has an interest in the Subject Vehicle via the RISC and Registration. (Mot. at 4:4-11; Kay Decl., ¶¶4-5, Exs. A-B.)

Accordingly, Mrs. Norris' absence from this lawsuit would prejudice GM, i.e., leave GM subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of Mrs. Norris' claimed interest in the Subject Vehicle.

A. CONCLUSION

Defendant

General Motors LLC's Motion to Dismiss the Action is DENIED without prejudice.

Plaintiff

Chad Norris is ordered to amend the First Amended Complaint to add Dara Lynn Norris as a co-plaintiff in this instant action per Code of Civil Procedure Section 389, subdivision (a) within 20 days of this Order.

Defendant

General Motors LLC to give notice.

Dated: August

21, 2026

Hon. Karen Moskowitz

Judge

of the Superior Court